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CASE #	CASE NAME	HEARING NAME
CVPS2502104	GARNICA VS VOLKSWAGEN GROUP OF AMERICA, INC., A NEW JERSEY CORPORATION	HEARING RE: MOTION TO BE RELIEVED AS COUNSEL FOR VOLKSWAGEN GROUP OF AMERICA, INC., A NEW JERSEY CORPORATION

Tentative Ruling: No tentative ruling. Hearing will be conducted on Monday, August 24, 2026 at 8:30 a.m., Department PS2.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2506635	BAUTISTA VS CABALLERO	HEARING RE: MOTION FOR ATTORNEYS FEES BY GUILLERMINA CABALLERO, JESUS PINA BAUTISTA

Tentative Ruling: Granted.

Granted in reduced but reasonable amount payable to moving Defendant by Plaintiff within 30 days of this order becoming final.

Moving party to provide notice pursuant to CCP 1019.5.

Plaintiff Genaro Bautista ("Plaintiff") alleges that on 9/14/23, he hired a licensed and armed process server, Van Wilcox, to serve an eviction notice on a tenant occupying the property that Plaintiff and his family owned. Plaintiff alleges that between September 14 and September 18, his siblings, Defendants Guillermina Caballero and Jesus Pina Bautista ("Defendants"), reported to the Sheriff's Office that Plaintiff himself was the armed individual seen on the Ring camera video footage of the property. Plaintiff asserts Defendants knew this report was false. As a result of this report, on 9/18/23, Sheriff's deputies detained and arrested Plaintiff, raid his home without consent, and held him overnight for eleven hours before releasing him on bail. Plaintiff alleges that since 10/3/23, Defendants have filed multiple false temporary restraining order (TRO) requests against him.

The complaint, filed 9/5/25, asserts: (1) intentional infliction of emotional distress (IIED); (2) malicious prosecution; (3) false arrest; (4) negligence; (5) a civil rights claim for illegal arrest; and (6) a civil rights claim for violation of privacy rights.

On 5/7/26, the court granted Defendants' anti-SLAPP motion in part, striking the 4th cause of action for negligence. Plaintiff also voluntarily dismissed the two federal civil rights claims.

Now, Defendants argue that they prevailed on their anti-SLAPP motion and seek \$14,450 in attorney fees (28.9 hours at \$500/hour), plus \$159.71 in costs. The motion alternatively identifies counsel's actual rate as \$300/hour for this case and the grand total equals \$8,829.71.

In opposition, Plaintiff argues the motion produced little practical benefit because the material causes of action remain. Plaintiff argues that the same arrest, reports, witnesses, video, and damages evidence remain at issue to be litigated. Plaintiff also challenges the requested rate and hours, asserting that certain time entries concern general client representation rather than the special motion to strike.

Attorney Fees on Anti SLAPP